

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY  
MARTINEZ, CA  
DEPARTMENT 14, RICHMOND  
JUDICIAL OFFICER: KIRK ATHANASIOU  
HEARING DATE: 05/26/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email [Dept14@contracosta.courts.ca.gov](mailto:Dept14@contracosta.courts.ca.gov) and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

**Zoom hearing information**

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

**Law & Motion**

1. 9:00 AM CASE NUMBER: L21-06068

CASE NAME: CAPITAL ONE BANK (USA),N.A. VS. JEFFREY KRATO

\*HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION  
FILED BY: CAPITAL ONE BANK (USA),N.A.

**\*TENTATIVE RULING:\***

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion was originally scheduled for 3/17/26, but the Plaintiff had not properly noticed the Defendant, so this court continued the Motion to 5/26/26, 9am.

The court directed the Plaintiff to file the Order stemming from the continuance on 3/17/26.

Though the Motion remains unopposed, as of this writing, Plaintiff has not filed the Order, nor has Plaintiff filed anything reflecting that Defendant has been served with notice of this Motion.

Disposition

Plaintiff's Motion will be vacated for lack of notice.

The court will not continue it, since this is now the second setting where Plaintiff has failed to properly serve the Defendant with notice.

**2. 9:00 AM CASE NUMBER: L23-06066**

**CASE NAME: JPMORGAN CHASE BANK N.A. VS. MERRY SAMATRA**

**\*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

**FILED BY: JPMORGAN CHASE BANK N.A.**

**\*TENTATIVE RULING:\***

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is opposed, to some extent, in that counsel for Defendant is asking for a continuance on the basis that he would like an opportunity for his client to resume payments according to the agreement.

Analysis

Mail service was completed at an address for counsel for Defendant.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$8,734.57, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$3,322, with the last payment occurring on 10/31/25.

Costs are \$0.

Defendant's response to this Motion does not amount to any sort of defense or argument against the validity of Plaintiff's claim. Moreover, to the extent that the Defense is asking for a continuance, the court does not find good cause for the request. The Defense is not asking for my time to respond to the Motion; rather, it is conceding the merits and is effectively asking the Plaintiff not to enforce their agreement.

That is something for the Plaintiff to decide.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,412.57.

Plaintiff to file order on Motion, as well as submit Judgment.

If Plaintiff wishes to stipulate to the continuance request of the Defendant, the parties can inform the court and the court will continue this Motion.

**3. 9:00 AM CASE NUMBER: L23-06799**

**CASE NAME: BANK OF AMERICA N.A. VS. DEJA HAYNES**

**\*HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION  
FILED BY: BANK OF AMERICA N.A.**

**\*TENTATIVE RULING:\***

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion was originally scheduled for 3/17/26, but the Plaintiff had not properly noticed the Defendant, so this court continued the Motion to 5/26/26, 9am.

The court directed the Plaintiff to file the Order stemming from the continuance on 3/17/26.

Though the Motion remains unopposed, as of this writing, Plaintiff has not filed the Order, nor has Plaintiff filed any additional materials reflecting that Defendant has been served with notice of this Motion.

Disposition

Plaintiff's Motion will be vacated for lack of notice.

The court will not continue it, since this is now the second setting where Plaintiff has failed to properly serve the Defendant with notice.

**4. 9:00 AM CASE NUMBER: L24-08578**

**CASE NAME: WESTLAKE SERVICES LLC DBA WESTLAKE FINANCIAL SERVICES VS. TANEKA HARDY**

**\*HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY DEFT ON 12-5-25  
FILED BY:**

**\*TENTATIVE RULING:\***

Counsel for Defendant originally filed this Motion to be heard on 3/3/26. On 3/3/26, this court continued the Motion to 5/26/26, because counsel had not provided a declaration, or any reason for the request to withdraw as counsel, nor did counsel notify the Defendant.

Counsel was also ordered to file the order reflecting the continuance.

Nothing has been filed to augment counsel's original Motion.

**Disposition**

This Motion is denied without prejudice.

Court to file and serve the Order.

5. 9:00 AM CASE NUMBER: L24-08990

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. HANNAH KOO

\*HEARING ON MOTION FOR DISCOVERY MOTION FOR ORDER THAT MTTRS IN REQ FOR ADMISSIONS OF TRT OF FCTS BE DEEMED ADMITTED FILED BY PLN ON 6/9/25

FILED BY: JPMORGAN CHASE BANK, N.A.

**\*TENTATIVE RULING:\***

**Background**

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

**Analysis**

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

**The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.**

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

### **Disposition**

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

6. 9:00 AM CASE NUMBER: L24-10378  
CASE NAME: CAPITAL ONE, N.A. VS. FERNANDO RIVERA

**\*HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED  
FILED BY: CAPITAL ONE, N.A.**

### **\*TENTATIVE RULING:\***

#### **Background**

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

#### **Analysis**

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

**The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a**

***substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.**

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

### **Disposition**

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

7. 9:00 AM CASE NUMBER: L25-03203

CASE NAME: JPMORGAN CHASE BANK N.A. VS. JOANNE BATT

\*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

FILED BY: JPMORGAN CHASE BANK N.A.

**\*TENTATIVE RULING** 🤖

### **Background**

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation.

The Motion and its supporting documents are timely.

This Motion is unopposed.

### **Analysis**

A proof of service was filed indicating mail service on the Defendant. However, there's no evidence to support that this is, in fact, the proper mailing address for Defendant.

Defendant was never served with the Summons and Complaint in this matter, and has never filed any pleadings.

Though a stipulation between the parties was purportedly reached and filed with the court, the court does not find, by a preponderance, that the Defendant is aware of this

Motion.

Disposition

Plaintiff's Motion will be continued to 8/11/26, 9am.

Plaintiff to file order on Motion.

Plaintiff to properly serve Defendant with notice of the Motion.

8. 9:00 AM CASE NUMBER: L25-04216

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. ASSEEM GOPAL

**\*HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

**FILED BY: JPMORGAN CHASE BANK, N.A.**

**\*TENTATIVE RULING:\***

**Background**

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

**Analysis**

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

**The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a substantially compliant response AND demonstrate that the reason for the**

**untimely response was due to mistake, inadvertence, or excusable neglect.**

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

**Disposition**

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

9. 9:00 AM CASE NUMBER: L25-07221

CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. RUDY CACHO

\*HEARING ON MOTION IN RE: MO FOR AN ORDER THAT MATTERS IN REQ FOR ADMIS OF TRU OF FACTS BE DEEMED ADMIT

FILED BY: PORTFOLIO RECOVERY ASSOCIATES, LLC

**\*TENTATIVE RULING:\***

**Background**

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eleven, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant's attorney with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

**Analysis**

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed

admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

**The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.**

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

### **Disposition**

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

10. 9:00 AM CASE NUMBER: L25-09728

CASE NAME: JPMORGAN CHASE BANK N.A. VS. ARLETTE ORDAZ

\*HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

FILED BY: JPMORGAN CHASE BANK N.A.

**\*TENTATIVE RULING:\***

### **Background**

Plaintiff filed an Amended Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), on 3/11/26.

Plaintiff attached the particular facts at issue, numbered One through Eight, in Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

### **Analysis**

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

**The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.**

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

### **Disposition**

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

**11. 9:00 AM CASE NUMBER: L25-11419**

**CASE NAME: CAPITAL ONE, N.A. VS. EDUARDO GARCIA**

**\*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO NOTICE OF MOTION AND MOTION TO VACATE JUDGMENT AND DISMISS ACTION WITHOUT PREJUDICE**

**FILED BY: CAPITAL ONE, N.A.**

### **\*TENTATIVE RULING:\***

Plaintiff filed a Motion to set aside a Default Judgment, filed on 1/29/26, and dismiss the matter without prejudice.

The Motion is unopposed.

Plaintiff filed a proof of service reflecting mail service of notice of the Motion on the Defendant.

### **Background**

After Plaintiff filed Request for Entry of Default in the matter, on 1/7/26, and prior to the entry of judgment, Defendant filed a bankruptcy claim in federal court. Plaintiff did not learn of the bankruptcy case until after entry of judgment.

### **Analysis**

While Plaintiff served notice of the Motion on a purported mail address for the Defendant, the Defendant was never served with process, nor did the Defendant file anything in this matter. Thus, service is incomplete.

However, the court finds no prejudice to defendant in proceeding with this Motion.

Section 473(d) of the CCP permits a trial court to set aside any void judgment.

The filing of a claim in bankruptcy court renders an automatic stay of any collections matter that commenced before the filing of the bankruptcy claim. *11 U.S.C. Section 362*.

Thus, the instant matter should have been stayed and the judgment should never have issued.

### **Disposition**

Plaintiff's Motion is granted.

This case is dismissed without prejudice.

**12. 9:00 AM CASE NUMBER: L25-13185**  
**CASE NAME: CAVALRY SPV I, LLC AS ASSIGNEE OF CITIBANK, N.A. VS. DAVID GASCA**  
**\*MOTION/PETITION TO COMPEL ARBITRATION**  
**FILED BY: GASCA, DAVID A**

### **\*TENTATIVE RULING**

Defendant filed a Motion to compel arbitration and stay proceedings. The Motion is unopposed. Defendant timely served notice of the Motion and the Motion on the Plaintiff.

### **Background**

The Complaint in this matter, filed by Plaintiff on 11/8/25, included an attachment of the purported agreement between the parties. See Attachment A, section on Arbitration. This agreement appears to contain an arbitration clause, which reflects that a party may request arbitration at any time by filing a motion to compel arbitration. The section also makes clear that the parties will lose the right to litigate after the arbitration clause is triggered.

### **Analysis**

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ.

Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

It is the moving party's burden to prove the existence of such an agreement. *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4<sup>th</sup> 951.

In the instant matter, the court takes judicial notice of the Complaint and its exhibits. These exhibits demonstrate, by a preponderance of the evidence, the existence of an arbitration clause, and also that Defendant has properly triggered this clause by virtue of this Motion.

**Disposition**

Defendant's Motion is granted.

The instant matter will be stayed and calendared for a future CMC to check on the status of the arbitration.

The Court will file the Order and notify the parties of the future CMC date.

**Courtroom Clerk's Session**

**13. 1:30 PM CASE NUMBER: RS25-0934**  
**CASE NAME: CHEER WISH INC. VS. KENNETH EDGERLY**  
**JURY TRIAL**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

**14. 1:30 PM CASE NUMBER: RS26-0041**  
**CASE NAME: JAIME CHAVEZ VS. JAVIER LOPEZ**  
**JURY TRIAL**  
**FILED BY:**  
**\*TENTATIVE RULING:\***